

CITY CONTRACT NO. _____

THIS AGREEMENT made and entered into this 1st day of July, 2013, by and between the City of Cheyenne, a municipal corporation of the State of Wyoming, hereinafter referred to as “City,” whose address is 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, and Bill G. Hibbler, P.C., an attorney licensed to practice law in the State of Wyoming, hereinafter referred to as “Hibbler,” whose address is P.O. Box 2143, Cheyenne, Wyoming 82003-2143.

W I T N E S S E T H:

WHEREAS, the City has a need for the assistance of outside legal counsel for various services and representation; and

WHEREAS, the City wishes to enter into a contract with an attorney licensed in the State of Wyoming to perform these services; and

WHEREAS, Hibbler is willing to provide legal services to the City.

NOW, THEREFORE, in consideration of the mutual covenants and conditions herein contained, it is hereby agreed as follows:

1. Hibbler hereby agrees to provide outside legal counsel to the City beginning July 1, 2013, and ending June 30, 2014.

2. As compensation for services rendered by Hibbler, the City shall pay Hibbler at the rate of One Hundred Ten Dollars (\$110.00) per hour. The City shall pay Hibbler for expenses incurred during the performance of this Agreement.

3. An attorney/client relationship is created between Hibbler and the City. All matters involved in the rendering of legal services shall be considered privileged and confidential. Hibbler is an independent contractor and nothing contained in this Agreement shall be construed to create a relationship of employer/employee. The City shall have no right to control or direct the details, manner or means by which Hibbler performs services under this Agreement, provided that such services shall be performed to the City’s reasonable satisfaction. Hibbler agrees to pay all taxes and fees, including income and social security, that he is obligated to pay as an independent contractor.

4. It is hereby mutually agreed and understood that either the City or Hibbler shall have the right to cancel this Agreement at any time, provided that notice be given to the other party in writing thirty (30) days prior to cancellation, and the City shall pay Hibbler for services rendered upon cancellation.

5. The City does not waive its governmental immunity by entering into this Agreement and fully retains all immunities and defenses provided by law with regard to any action based on this Agreement.

6. This Agreement shall be binding upon and enure to the benefit of the parties, their successors and personal representatives.

7. This Agreement contains the entire understanding of the parties. There are no other terms or conditions, oral or written, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties hereto have caused this instrument to be executed as of the day and year first above written.

Bill G. Hibbler, P.C., Attorney at Law

Daniel E. White, City Attorney

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk